MINUTES OF THE MEETING OF MAY 7, 2003

The Pine Valley Special Service District Meeting was held on Wednesday, May 7,2003 in the Pine Valley Fire Department Conference Room. The meeting was convened at 6:10 p.m. Board Members present: Chairman Ron Snow, Victor Christensen, Ryon Gardner and Lee Carlile. Also present were Fred Pendelton of the Pine Valley Historical Advisory Committee, Carolyn Carlile, Beverly Udell, Steve Robinson of the Washington County Planning & Zoning Commission and George Cropper who filled in for the Board Secretary in her absence.

Excused: Vice Chairman, Vicki Frei and Julie M. Cropper Secretary/Treasurer.

Board Member Victor Christensen led the audience in the Pledge of Allegiance at 6:10 pm in the absence of Ron Snow, who joined the meeting later.

Minutes of the meeting of April 2, 2003 were read and approved on a motion by Lee and second by Ryon.

There were no building pennits to review.

TRUSTEE REPORTS

- Lee mentioned that he had found some old Pine Valley newsletters and found it interesting that on August 4, 1978 the board was discussing surveys of the public for zoning information and OHV issues. He said OHV issues were mentioned repeatedly during those years and he hopes the board can bring some ofthese lingering issues to conclusion.

Fire Chief Dall Winn reported on the following:

- the final grant application has been completed and submitted.
- with the help of Steve, he explained that the department has an AED (automatic external defibrillator). Training will be set up to train firemen and others on how to use it and will be available at the Pine Valley Fire Department for EMTs or others to use when needed.
- he has met with Pine Valley Irrigation Co. and they have staked the hydrant location so that it can be installed.
- training is continuing with three sessions per month of regular training, the next being on May 17,2003. Two volunteers are going to structural fire training in St. George, Utah and Gae is going to intermediate EMT.
- following discussions at the Washington County Fire Chiefs meeting, our EMTs will be the first responders to medical emergencies in Pinto and Central, Utah as we are the nearest EMT services.
- we have foam capability on both small brush trucks. Dall has picked up some 1 1/2 inch hose and nozzles donated from SUU in Cedar City. We have recently inventoried hose on all trucks and we have a good supply.

There were no citizen questions or requests for input at the meeting.

PINE VALLEY HISTORICAL ADVISORY COMMITTEE

Fred passed out summaries of the community survey report. He said that Mike Williamson and Buzz Roach were new members of the Historical Advisory Committee and had helped put this report together. Fred discussed the format and results shown in the charts. He said they were considering some method to give weight to differences in "exposure" between full time residents and part time resident/visitors. Some graphs compared levels of concern for both full time and part time residents and cited the OHV graphs where 50% of all respondents are very concerned and 80% of full time residents are very concerned. He said the survey does not present any data about opinions of non-property owners who come to the valley to play or otherwise enjoy. The survey indicated that nobody wants more commercial uses in the valley.

The Trustees expressed their thanks to Fred and others on the Historical Committee for their work in acquiring the good information that we can use to guide the future in the valley.

NEW BUSINESS

Victor opened a discussion about OHV issues by saying he would like to have a discussion with Trustees and get their feeling before we jump into further action on this issue. He said he has been thinking of several options including disallowing OHVs completely in Pine Valley, but recognized that there are some people using them responsibly for valid reasons besides just recreation. He also said an option could be explored to have some written guidelines that might be enforced by members of the fire department using the trucks with flashing lights when they do patrols during the summer months. Firemen could contact OHV users and talk to them and if they don't get a positive response in following the rules the sheriff could be called.

The issues wERE discussed at length with the following items or concerns mentioned:

- firemen really have no authority and probably could not legally ask for names etc.
- anyone can get an agriculture exemption sticker if they qualifY and could legally ride for agricultural purposes.
- complete outlawing will not work unless it is followed by better enforcement than we have now. County search and rescue people have deputized authority and perhaps could help with enforcement.
- nobody likes to complain directly to parents or to their neighbors and it still comes back to the "squeaky wheel gets the grease". We need to call the sheriff.
- there is still confusion even among deputies about the present OHV rules and different deputies are not consistent in their enforcement.
- we need to consider regulations such that the proposed cross country OHV trail could not come through Pine Valley.
- we need to have a mechanism to control riders who bring machines 4 or 6 at a time and ride who have no property connection to the valley. People can easily trailer them out of town.
- we have four weekends that are extra bad. Could we hire our own security. This is not really covered under the Service District Charter but it may be possible through the Sheriff's Dept.
- Steve recommended that since the community survey has created a finding, the Board could give a written notice to the County and send them a plan for an ordinance to prohibit OHVs in Pine Valley except for agricultural use. The County could take up the request and would probably have a public hearing. It would go to Planning and Zoning Commission before it went to the Commissioners, but it could be presented soon.

- if an ordinance were passed we would need to do a mailing or otherwise notifY people about what the regulations are.
- Ryon said he understands the problem, but doesn't want to hinder those using OHVs responsibly.
- a good portion of the problem are the "haul-ins" and its not only kids, it is older people also.
- many trailer into the campgrounds and unload just below the campgrounds.
- we dont want to be involved with enforcement.
- we've been talking about this for 25 years. It comes to a complete restriction or not.

Ryon concluded the discussion by making a motion to accept the Historical Advisory Committee report and to have Victor prepare a letter to Washington County asking them to pursue an ordinance to prohibit Off Highway Vehicles on lands included in the Washington County's Pine Valley Zoning Map. Exceptions would be made for those with appropriate Agriculture Use Stickers who are engaged in activities related to owned agricultural properties in Pine Valley. This motion was seconded by Lee and carried on a voice vote.

Steve Robinson mentioned that Gae Robinson had completed her intermediate EMT training and presented a mileage bill for $340.20. Victor moved and Lee seconded a motion to reimburse these expenses. The motion carried.

Steve stated that the County had passed a Sexually Oriented Business Ordinance yesterday. Three areas, none of them near Pine Valley, were zoned for this use.

ADJOURNMENT

There being no further business, Lee moved adjournment. The motion was seconded by Victor and carried. The meeting was adjourned at 7:10 pm.

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